

## 24STCV19531 24STCV19531

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-27

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Case Number: 24STCV19531 Hearing Date: July 27, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Claudia N. Calderon

, et al.;

Plaintiffs,

vs.

American Honda Motor

Company, Inc.

;

Defendant.

Case No.:

24STCV19531

Hearing Date:

July 27, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Demurrer

to Second Amended Complaint

MOVING PARTY: Defendant American Honda Motor  
Company, Inc.

RESPONDING

PARTY: Plaintiffs Claudia Calderon and  
Fausto Mendoza.

Demurrer to Second  
Amended Complaint

The court considered the moving,  
opposition, and reply papers filed in connection with this demurrer.

#### DISCUSSION

Defendant

American Honda Motor Company, Inc. ("Defendant") demurs to the Second Amended Complaint filed by plaintiffs Claudia Calderon and Fausto Mendoza ("Plaintiffs") with respect to the first three causes of action for violation of Civil Code section 1793.2 subdivisions (d), (b), and (a)(3).

The court

overrules Defendant's demurrer to the first cause of action for violation of Civil Code section 1793.2, subdivision (d) because Defendant has not shown that it does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiffs have alleged that Defendant, as distributor, issued a warranty on the used vehicle that is the subject of this action at the point of sale, which subjects

Defendant to the same obligations as a manufacturer issuing a warranty with a new motor vehicle pursuant to Civil Code section 1795.5.

Under section

1793.2, subdivision (d)(2), the Song-Beverly Consumer Warranty Act provides that a manufacturer shall promptly replace a new motor vehicle, or make restitution to the buyer, if the manufacturer is unable to service or repair a new motor vehicle to conform to the applicable express warranties. (Civ. Code, § 1793.2, subd. (d)(2).) As noted by Defendant, the California Supreme

Court recently held that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2)’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (Rodriguez v.

FCA US LLC (2024) 17 Cal.5th 189, 196 [emphasis added].) However, a distributor of used consumer goods “in a sale in which an express warranty is given” has the same obligations under the Song-Beverly Act as a manufacturer of new goods. (Code Civ. Proc., § 1795.5.)

Here,

Plaintiffs have alleged that Defendant Honda is a distributor of motor vehicles who issued a new Certified Pre-Owned warranty with Plaintiffs’ purchase of the vehicle. (SAC ¶ 9-12.) Plaintiffs have thus pled that Defendant, as a distributor, issued an express warranty in a sale of a used consumer good. Civil Code section 1795.5 therefore applies to impose the same express warranty obligations as a manufacturer of new consumer goods, i.e., the obligations imposed by section 1793.2.

The

court overrules Defendant’s demurrer to the second cause of action for violation of Civil Code section 1793.2, subdivision (b) because Defendant has not shown that it does not state facts sufficient to constitute a cause of action since Plaintiffs have alleged, for the reasons stated above, facts establishing that the vehicle is subject to the express warranty provisions of the Song-Beverly Act pursuant to Civil Code section 1795.5. (Code Civ. Proc., § 430.10, subd. (e).)

The court

overrules Defendant’s demurrer to the third cause of action for violation of Civil Code section 1793.2, subdivision (a)(3) because Defendant has not shown

that it does not state facts sufficient to constitute a cause of action since Plaintiffs have alleged, for the reasons stated above, facts establishing that the vehicle is subject to the express warranty provisions of the Song-Beverly Act pursuant to Civil Code section 1795.5. (Code Civ. Proc., § 430.10, subd. (e).)

#### ORDER

The court

OVERRULES defendant American Honda Motor Company, Inc.'s demurrer to plaintiffs Claudia Calderon and Fausto Mendoza's Second Amended Complaint.

The court orders plaintiffs

Claudia Calderon and Fausto Mendoza to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 27, 2026

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Robert B. Broadbelt III

Judge of the Superior Court